

Calendar Line 4

Case Name: *Marquez v. Newpath Landscape Services, Inc.*
Case No.: 23CV413336

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. *Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their

discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All current and former hourly–paid or non–exempt employees of Defendant in California during the Class Period [March 30, 2019 through June 17, 2025].

(Declaration of Kane Moon in Support of Motion for Preliminary Approval, Ex. 2

(“Agreement”), ¶¶ 1.5, 1.12.) The settlement includes a subset PAGA class of Aggrieved Employees, defined as: “[a]ll hourly–paid, non–exempt employees of Defendant who worked for Defendant in the State of California during the PAGA Period [March 30, 2022 through June 17, 2025].” (*Id.* at ¶¶ 1.4, 1.31.)

Defendant will pay a non–reversionary gross settlement amount of \$650,000, and this amount includes: attorney fees of up to one–third of the gross settlement amount (i.e., \$216,666.66); litigation costs according to proof; PAGA penalties of \$65,000 (75 percent of which, or \$48,750, will be paid to the LWDA and 25 percent of which, or \$16,250, will be paid to Aggrieved Employees as individual PAGA payments); service payments of up to \$7,500 to Plaintiff Marquez and up to \$5,000 to Plaintiff Sanchez; and settlement administration costs up to \$8,850. (Agreement, ¶¶ 3.3.1–3.3.5.) The net settlement amount will be distributed to participating class members on a pro–rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (*Id.* at ¶¶ 3.3.4, 3.3.5.1.) At preliminary approval the Court approved and appointed ILYM Group, Inc. (“ILYM”) as settlement administrator and approved the designation of Legal Aid at Work as the *cy pres* recipient of funds from settlement checks that remain uncashed 180 days after mailing. (*Id.* at ¶ 4.4.3.)

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from “all claims that were asserted in the Operative Complaint, or

that arise from or reasonably could have been asserted, based on any of the facts, circumstances, transactions, events, occurrences, acts, disclosures, statements, omissions or failures to act alleged in Plaintiffs' Operative Complaint, regardless of whether such claims arise under federal, state and/or local law, statute, ordinance, regulation, common law, or other source of law." (Agreement, ¶ 5.2.) Aggrieved Employees will be deemed to release "any and all claims for PAGA civil penalties that are alleged in Plaintiffs' Operative Complaint and PAGA Letters," to the extent those claims accrued during the PAGA Period. (*Id.* at ¶ 5.3.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting preliminary approval, the Court approved ILYM as settlement administrator. ILYM received the class data from Defendant on February 3, 2026. The class data identified 520 class members who worked 33,282 workweeks during the Class Period, and 352 Aggrieved Employees who worked 9,330 pay periods during the PAGA Period. (Declaration of Nathalie Hernandez ("Hernandez Decl."), ¶¶ 4–5.) After running the addresses against the National Change of Address database, ILYM mailed the notice packet, in English and Spanish, to all 520 class members on February 19, 2026. (*Id.* at ¶¶ 6–7 and Ex. A.) The deadline to request exclusion or object was April 20, 2026. As of the date of Ms. Hernandez's declaration, ILYM had received zero requests for exclusion and zero objections. (*Id.* at ¶¶ 11–13.) ILYM estimates that the average individual class payment will be approximately \$625.75. The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable and within the range of possible approval. Given the absence of any objection, the Court finds no reason to deviate from its earlier finding. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Awards, Attorney Fees and Costs

Plaintiff Marquez seeks a service award of \$7,500 and Plaintiff Sanchez seeks a service award of \$5,000. Each has provided a declaration describing his participation in the litigation, the reputational risk he undertook in suing an employer, and his understanding of the duties of a class representative, and each estimates that he devoted 25 to 30 hours to the case. (Declaration of Rufino Marquez, ¶¶ 17–26; Declaration of Santos Sanchez, ¶¶ 17–26.) The Court finds that service awards are justified and that the amounts requested are reasonable. The service awards are approved in the amounts requested.

Class Counsel seek an attorney fee award of \$216,666.66, which is one third of the gross settlement amount and the maximum permitted by the Agreement. (Memorandum, pp. 16–19; Moon Decl., ¶¶ 64–77.) Counsel reports a lodestar of \$130,675 for 172.6 hours billed by five attorneys of Moon Law Group, PC at rates ranging from \$450 to \$950 per hour, a blended rate of approximately \$757 per hour, and they do not include in that figure the time still to be spent obtaining final approval and overseeing administration. (Moon Decl., ¶¶ 71–72.) The requested fee therefore reflects a multiplier of approximately 1.66, which is within the range of multipliers generally approved by California courts.

The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount of \$216,666.66.

Class Counsel request reimbursement of litigation costs in the amount of \$15,336.61, and they provide an itemized list in support, the largest single item being an \$8,500 mediation fee. (Memorandum, p. 20; Moon Decl., ¶¶ 15, 78 and Ex. 4.) The Agreement provides for reimbursement of actual costs according to proof, and the amount sought is modestly above the \$14,743.44 that counsel estimated at preliminary approval. The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$8,850. (Hernandez Decl., ¶ 16.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

Plaintiffs shall prepare the order in accordance with California Rules of Court, rule 3.1312.

Calendar Line 5

Case Name: *Sarkis v. Miltenyi Biotec, Inc.*
Case No.: 24CV439462

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiffs' motion for preliminary approval of the settlement. Before the Court is Plaintiffs' motion for final approval of the settlement, and the motion is unopposed. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027, at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness exists where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Wershba, supra*, 91 Cal.App.4th at p. 245.)

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